

HOUSE No. 2305

The Commonwealth of Massachusetts

PRESENTED BY:

Kathleen R. LaNatra

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act reforming the MBTA Communities Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>1/17/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/30/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>3/11/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>4/17/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>4/17/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/17/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>8/14/2025</i>

HOUSE No. 2305

By Representative LaNatra of Kingston, a petition (accompanied by bill, House, No. 2305) of Kathleen R. LaNatra, Colleen M. Garry and Kristin E. Kassner relative to the MBTA Communities Act. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act reforming the MBTA Communities Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (b) of section 3A of chapter 40A of the General Laws, as most
2 recently amended by section 9 of chapter 150 of the acts of 2024, is hereby further amended by
3 adding the following sentence:- Provided, however, that an MBTA community shall continue to
4 be eligible for all funding sources enumerated in this subsection if it: (1) adopted a zoning
5 ordinance or bylaw that allows for the creation of multifamily housing units equal to at least 10
6 per cent more than the total number of year-round units enumerated for the city or town in the
7 latest available United States Census; (2) produced housing units equal to at least 5 per cent of
8 the total number of year-round units enumerated for the city or town in the latest available
9 United States Census; or (3) created housing pursuant to a housing production plan approved by
10 the executive office of housing and livable communities. For the purposes of clauses (1) and (2)
11 of this subsection, for the first 4 years after the issuance of the latest available United States
12 Census, the preceding census shall be used.

SECTION 2. Subsection (c) of said section 3A of said chapter 40A, as amended by section 153 of chapter 7 of the acts of 2023, is hereby further amended by striking out the word “guidelines” and inserting in place thereof the following word:- regulations.

SECTION 3. Said subsection (c) of said section 3A of said chapter 40A, as so amended, is hereby further amended by adding the following 2 sentences: The regulations shall not impose any additional obligations or restrict any funding sources not set forth in subsection (b). An MBTA community shall be deemed to be in compliance with this section if multi-family housing units within the community comprise at least 25 per cent of the total number of year-round units enumerated for the city or town in the latest available United States Census.